Zivoe Labs Terms of Use

Effective Date: May 13, 2024

PLEASE READ THE FOLLOWING TERMS OF USE CAREFULLY BEFORE USING THIS OR ANY ZIVOE LABS WEBSITE AND APPLICATION (INCLUDING BUT NOT LIMITED TO A DAPP). ANY USE OF THIS SITE CREATES A BINDING AGREEMENT TO COMPLY WITH THESE TERMS AND CONDITIONS. IF YOU DO NOT AGREE TO THESE TERMS, YOU SHOULD EXIT THE SITE IMMEDIATELY.

NOTE: THIS AGREEMENT CONTAINS A BINDING ARBITRATION PROVISION AND CLASS ACTION WAIVER. IT AFFECTS YOUR LEGAL RIGHTS UNLESS YOU OPT OUT, AS DETAILED IN THE ARBITRATION AND CLASS ACTION WAIVER SECTION BELOW. PLEASE READ CAREFULLY.

Introduction

Welcome to the ZIVOE LABS ("ZIVOE LABS," "we," "us," or "our") website (www.zivoe.com) and any related application (hereinafter collectively referred to as the "Site"). All use of the Site is subject to the terms and conditions contained in these Terms of Use. By accessing, browsing, or otherwise using the Site, you acknowledge that you have read, understood, and agreed to be bound by the following Terms of Use and Zivoe's Privacy Policy (collectively referred to as the "Terms"), which are hereby incorporated by reference. If you do not accept these Terms, you do not have our permission to access, browse, or use the Site.

We encourage you to check these Terms periodically, as we reserve the right, at our sole discretion, to change or modify portions of these Terms at any time. If we make changes, we will post them on this page and indicate at the top of this page the date these Terms were last updated. Any continued use of the Site after changes constitutes your acceptance of the revised terms and conditions. If any change to these Terms is unacceptable to you, your sole remedy is to cease accessing, browsing, or otherwise using the Site.

Important Disclaimers

No Financial Advice: The Site does not provide any financial advice or opinions. All materials on the Site are for informational purposes only. As the information is general in nature and may not pertain to your specific circumstances, you should not act or refrain from acting based on any information without first obtaining advice from relevant professionals qualified in the applicable subject matter and jurisdictions.

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1. Eligibility

A. Age Requirement:

You must be at least 18 years old to use the Site.

B. Accredited Investor Status (For U.S. Persons):

Zivoe Labs is available to U.S. persons only if they qualify as "Accredited Investors" as defined under U.S. law and have completed KYC (Know Your Customer) verification. By using our services, you represent and warrant that you meet these criteria.

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2. Use of the Site

A. Permitted Use:

Zivoe Labs grants you a limited, non-exclusive, non-transferable, revocable license to access and use the Site for personal use only, in accordance with these Terms.

B. Restrictions:

You may not use the Site for any illegal purpose, modify or create derivative works based on the Site's content, or engage in activities that disrupt or interfere with the Site’s operation.

C. Territorial Restrictions:

The Site is accessible globally; however, users are responsible for ensuring that their use complies with applicable laws and regulations in their jurisdiction.

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3. Ownership and Intellectual Property

A. Users Retain Full Control Over Their Cryptoassets:

It is important to understand that neither we nor any affiliated entity is a party to any transaction on the blockchain networks underlying the Zivoe Labs protocol. We do not have possession, custody, or control over any crypto assets or any user’s funds. You retain control over your crypto assets at all times when interacting with the Zivoe Labs protocol.

B. Users Use Third-Party Self-Custodial Wallets to Interact with the Zivoe Labs Protocol:

To interact with the Zivoe Labs protocol using the interface, you must connect through your self-custodial wallet. This wallet is provided by a third party, governed by separate terms and conditions. You are solely responsible for reviewing and understanding these terms.

C. We Are Not Intermediaries to the Zivoe Labs Protocol Transactions:

Due to the non-custodial and decentralized nature of the technology, we are not intermediaries, agents, advisors, or custodians. We do not have a fiduciary relationship or obligation to you regarding your decisions or activities when using our services.

D. We Have No Information About All Protocol Transactions Beyond What Is Publicly Available via the Blockchain:

We do not have information regarding all Zivoe Labs protocol transactions beyond what is available or obtainable publicly via the blockchain. We may collect information about users in accordance with our Privacy Policy.

E. There May Be Associated Blockchain Fees:

Transactions using blockchains may require the payment of gas fees, which are non-refundable. We do not provide services to users or receive payment for cryptoassets. We do not receive any fees for any transactions or services.

F. Proprietary Rights:

All content on the Site, including text, graphics, logos, and software, is the property of Zivoe Labs or its licensors and is protected by intellectual property laws. You may not use any content without our express written permission.

G. Feedback:

Any feedback provided to Zivoe Labs is considered non-confidential, and we may use it at our discretion.

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4. User Conduct

Prohibited Activities: You agree not to use the Site for illegal activities, infringe on intellectual property rights, or interfere with the security features of the Site. Specific prohibitions include:

- Engaging in money laundering, fraud, or unauthorized financial services.
- Uploading harmful code, such as viruses or malware.
- Attempting to reverse engineer or access the Site's source code without authorization.
- Trick, defraud, or mislead us and other users, especially in any attempt to learn sensitive account information such as user passwords.

- Circumvent, disable, or otherwise interfere with security-related features of the Site.
- Use any information obtained from the Site to harass, abuse, or harm another person.
- Make improper use of the Site or submit false reports of abuse or misconduct.
- Engage in unauthorized framing of or linking to the Site.
- Try (including but not limited to any failed attempt) to exploit us.
- Interfere with, disrupt, or create an undue burden on the Site or the networks or services connected to the Site.

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5. Risk Disclosures

A. Risk of Financial Loss:

Engaging with blockchain technology and DeFi protocols involves significant financial risks, including the potential loss of your entire investment. Zivoe Labs is not responsible for such risks.

B. No Financial Advice:

The Site provides information for educational purposes only and does not constitute financial advice. Users should seek independent professional advice as needed.

C. Risks of Engaging in Novel and Experimental Technology:

Technologies such as smart contracts on various blockchains, cryptographic tokens generated by smart contracts, and other nascent software and systems are experimental and inherently risky. Zivoe Labs assumes no liability for such risks.

D. Third-Party Services or Links:

We are not responsible for the content or services of any third party, including, without limitation, any network or apps like Discord or MetaMask. Use and access of third-party products or services are at your own risk.

E. Automated Collection and Disbursement by Smart Contracts:

All transactions on blockchain-based networks are automatically processed using smart contracts. By using the Site, you consent to the automatic processing of all transactions.

F. Security of Your Self-Custodial Wallet:

You are solely responsible for maintaining the security of your self-custodial wallet and its private keys. Zivoe Labs does not have access to your private keys.

G. Right to Restrict Access:

We reserve the right to restrict your access to the Site if we suspect any illegal activity, fraud, or violation of these Terms.

H. Quality or Accessibility of the Site:

The Site may be inaccessible or inoperable for various reasons, including maintenance, technical challenges, or disruptions in blockchain infrastructure. We do not guarantee the quality or accessibility of the Site.

I. Use the Site at Your Own Risk:

You should not engage in blockchain-based transactions unless it is suitable given your circumstances and financial resources. By using the Site, you accept all associated risks.

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6. Cookies Policy

A. Use of Cookies:

Currently, we do not use cookies. If we decide to use cookies in the future, they will be used to improve the design and functionality of our Site.

B. Types of Cookies (if applicable in the future):

- Strictly Necessary Cookies: Essential for the Site's functionality.
- Analytical/Performance Cookies: Help us analyze how users interact with the Site.
- Functional Cookies: Enhance the personalization of the Site by remembering your preferences.

C. Managing Cookies:

You can manage or disable cookies through your web browser settings. For more information, visit http://www.aboutcookies.org.

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7. Arbitration, Dispute Resolution, and Applicable Law

Resolution of Disputes:

You acknowledge that you have read this provision carefully and understand that it limits your rights in the event of a dispute between you and Zivoe Labs. You understand that you have the right to reject this provision, as provided below.

Agreement to Attempt to Resolve Disputes Through Good Faith Negotiations: Before commencing any legal proceeding against us, you and we agree to attempt to resolve any dispute, claim, or controversy by engaging in good faith negotiations. If these negotiations fail, the parties may submit the dispute to arbitration.

Agreement to Arbitrate: Any dispute that cannot be resolved through negotiation will be resolved through binding arbitration in the Cayman Islands. The language of arbitration shall be English. The arbitrator(s) shall have experience in matters involving Internet technology, software applications, financial transactions, and ideally blockchain technology.

Class Action Waiver: You and we agree to waive any right to arbitrate a class action and act as a class representative or class member. If any part of this Arbitration Section is deemed invalid, the remaining sections will remain in full force and effect.

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9. Taxes

Users are solely responsible for paying any taxes or duties associated with their use of the Services and/or blockchain-based transactions. The tax treatment of these transactions is uncertain.

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10. Termination and Modification

A. Termination:

We may suspend or terminate your access to the Site at any time, without notice, for any reason, including violation of these Terms.

B. Modifications:

We reserve the right to modify or discontinue the Site or any portion thereof without notice. Changes to these Terms will be posted on this page.

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11. Limitation of Liability

To the fullest extent permitted by law, Zivoe Labs shall not be liable for any indirect, incidental, special, consequential, or punitive damages arising from your use of the Site, including lost profits or data.

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12. Indemnification

You agree to indemnify and hold harmless Zivoe Labs, its affiliates, and their respective officers, directors, employees, and agents from any claims, liabilities, damages, or expenses arising from your use of the Site or breach of these Terms.

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13. Miscellaneous

General Terms: These Terms, together with the Privacy Policy and any other agreements incorporated by reference, are the entire agreement between you and Zivoe Labs. If any part of these Terms is held to be invalid or unenforceable, the remaining parts will remain in full force and effect.

Consent to Electronic Communications: By providing your contact information through the Site, you consent to receiving electronic communications from us.

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14. Contact Information

For any questions regarding these Terms, Privacy Policy, or Cookies Policy, please contact us at inquire@zivoe.com.
